

1 AN ACT relating to teacher certification.

2 ***Be it enacted by the General Assembly of the Commonwealth of Kentucky:***

3 ➔Section 1. KRS 161.048 is amended to read as follows:

4 (1) The General Assembly hereby finds that:

5 (a) 1. There are persons who have distinguished themselves through a variety
6 of work and educational experiences that could enrich teaching in
7 Kentucky schools;

8 2. There are distinguished scholars who wish to become teachers in
9 Kentucky's public schools, but who did not pursue a teacher preparation
10 program;

11 3. There are persons who should be recruited to teach in Kentucky's public
12 schools as they have academic majors, strong verbal skills as shown by
13 a verbal ability test, and deep knowledge of content, characteristics that
14 empirical research identifies as important attributes of quality teachers;

15 4. There are persons who need to be recruited to teach in Kentucky schools
16 to meet the diverse cultural and educational needs of students; and

17 5. There should be alternative procedures to the traditional teacher
18 preparation programs that qualify persons as teachers;

19 (b) There are hereby established alternative certification routes~~[program options]~~
20 as described in subsections (2) to (10) of this section;

21 (c) It is the intent of the General Assembly that the Education Professional
22 Standards Board inform scholars, persons with exceptional work experience,
23 and persons with diverse backgrounds who have potential as teachers of these
24 alternative routes~~[options]~~ and assist local boards of education in
25 implementing these alternative routes~~[options]~~ and recruitment of individuals
26 who can enhance the education system in Kentucky;

27 (d) The Education Professional Standards Board may reject the application of any

1 candidate who is judged as not meeting academic requirements comparable to
2 those for students enrolled in Kentucky teacher preparation programs; and
3 (e) The Education Professional Standards Board shall promulgate administrative
4 regulations establishing standards and procedures for the alternative
5 routes~~[certification options]~~ described in this section~~[. If the certification~~
6 ~~option requires employment prior to certification, the procedures shall~~
7 ~~establish a process for candidates to obtain an eligible for hire letter from the~~
8 ~~Education Professional Standards Board].~~

9 (2) **The following are the established alternative routes to certification:**

10 **(a)** ~~[Option 1: Certification of a person with]~~Exceptional work experience. An
11 individual who has exceptional work experience shall receive a one (1) year
12 provisional certificate with approval by the Education Professional Standards
13 Board of an application by the individual under the following conditions:

14 **1.**~~[(a)]~~ The application contains documentation of all education and work
15 experience;

16 **2.**~~[(b)]~~ The candidate has documented exceptional work experience in the
17 area in which certification is being sought; and

18 **3.**~~[(c)]~~ The candidate possesses:

19 **a.**~~[1.]~~ A bachelor's degree or a graduate degree;

20 **b.**~~[2.]~~ A minimum cumulative grade point average of two and seventy-
21 five hundredths (2.75) on a four (4) point scale or a minimum
22 grade point average of three (3.0) on a four (4) point scale on the
23 last thirty (30) hours of credit completed, including undergraduate
24 and graduate coursework from a nationally or regionally
25 accredited postsecondary institution; and

26 **c.**~~[3.]~~ **At least one (1) of the following in the area in which certification**
27 **is sought:**

- i.** An academic major **or minor of a bachelor's degree;**
- ii.** **An academic content area of a graduate degree;** or
- iii.** A passing score on the academic content assessment[~~in the area in which certification is being sought by the applicant as designated by the Education Professional Standards Board].~~

After successful completion of one (1) year of teaching and upon the recommendation of the employing school district to the Education Professional Standards Board, the candidate shall receive a professional certificate and shall be subject to certificate renewal requirements the same as other teachers with a professional certificate.

(b) [(3)] [Option 2: certification through a local school district training program.

A local school district or group of school districts may seek approval for a training program. The state approved local school district training program is an alternative to the college teacher preparation program as a means of acquiring teacher certification for a teacher at any grade level. The training program may be offered for all teaching certificates approved by the Education Professional Standards Board, including interdisciplinary early childhood education, except for specific certificates for teachers of exceptional children. To participate in a state approved local school district alternative training program, the candidate shall possess:

- (a) ~~A bachelor's degree or a graduate degree;~~
- (b) ~~A minimum cumulative grade point average of two and seventy five hundredths (2.75) on a four (4) point scale or a minimum grade point average of three (3) on a four (4) point scale on the last thirty (30) hours of credit completed, including undergraduate and graduate coursework from a nationally or regionally accredited postsecondary institution; and~~
- (c) ~~A passing score on the academic content assessment in the area in which~~

1 certification is being sought by the applicant as designated by the Education
2 Professional Standards Board. To be eligible to take an academic content
3 assessment, the applicant shall have completed a thirty (30) hour major in the
4 academic content area or five (5) years of experience in the academic content
5 area as approved by the Education Professional Standards Board.

6 — An individual may participate in a local school district training program upon
7 meeting the participation requirements as established in this subsection and
8 approval by the Education Professional Standards Board of an application by
9 the individual. The candidate shall be issued a one (1) year provisional
10 certificate by the Education Professional Standards Board. After successful
11 completion of the local school district training program, one (1) year of
12 teaching, and upon the recommendation of the employing school district to
13 the Education Professional Standards Board, the candidate shall receive a
14 professional certificate and shall be subject to certificate renewal requirements
15 the same as other teachers with a professional certificate.

16 (4) ~~College faculty.~~ [Option 3: certification of a professional from a
17 postsecondary institution:] A candidate who possesses the following
18 qualifications may receive a one (1) year provisional certificate for teaching at
19 any level:

20 ~~1.(a)~~ A master's degree or doctoral degree in the academic content area
21 for which certification is sought; and

22 ~~2.(b)~~ A minimum of five (5) years of full-time teaching experience, or
23 its equivalent, in the academic content area for which certification is
24 sought in a regionally or nationally accredited institution of higher
25 education.

26 After successful completion of one (1) year of teaching and upon the
27 recommendation of the employing school district to the Education

Professional Standards Board, the candidate shall receive a professional certificate and shall be subject to certificate renewal requirements the same as other teachers with professional certificates.

~~(c)(5)~~ **Adjunct instructor**~~[Option 4: certification of an adjunct instructor]~~. A person who has expertise in areas such as art, music, foreign language, drama, science, computer science, and other specialty areas may be employed as an adjunct instructor in a part-time position by a local board of education under KRS 161.046. **A person may submit experience as an adjunct instructor to be considered toward the necessary exceptional experience required under paragraph (a) of this subsection.**

~~(d)(6)~~ **Veteran**~~[Option 5: certification of a veteran]~~ of the Armed Forces. The Education Professional Standards Board shall issue a statement of eligibility, valid for five (5) years, for teaching at the elementary, secondary, and secondary career technical education levels to a veteran of the Armed Forces who was honorably discharged from active duty as evidenced by Defense Department Form 214 (DD 214) or National Guard Bureau Form 22 or to a member of the Armed Services currently serving with six (6) or more years of honorable service, including Reserves, National Guard, or active duty. The candidate shall possess:

~~1.(a)~~ A bachelor's degree or graduate degree;

~~2.(b)~~ A minimum cumulative grade point average of two and seventy-five hundredths (2.75) on a four (4) point scale or a minimum grade point average of three (3) on a four (4) point scale on the last thirty (30) hours of credit completed, including undergraduate and graduate coursework from a nationally or regionally accredited postsecondary institution; and

~~3.(c)~~ **At least one (1) of the following in the area in which certification**

1 *is sought:*

2 *a.* An academic major *or minor of a bachelor's degree;*

3 *b.* *An academic content area of a graduate degree;* or

4 *c.* A passing score on the academic content assessment~~[in the area in~~
5 ~~which certification is being sought by the applicant as designated~~
6 ~~by the Education Professional Standards Board].~~

7 The eligible veteran shall receive a one (1) year provisional certificate with
8 approval by the Education Professional Standards Board of an application by
9 the veteran. After successful completion of one (1) year of teaching and upon
10 the recommendation of the employing school district to the Education
11 Professional Standards Board, the veteran shall receive a professional
12 certificate.

13 ~~(e)(7)~~ ~~[Option 6:]~~University-*based* ~~[alternative]~~program. With approval of
14 the Education Professional Standards Board, a university may provide an
15 alternative program that enrolls students in a postbaccalaureate teacher
16 preparation program concurrently with employment as a teacher in a local
17 school district. A student in the alternative program shall be granted a one (1)
18 year provisional certificate. The one (1) year provisional certificate may be
19 renewed four (4) additional years, and shall be contingent upon the
20 candidate's continued enrollment in the preparation program and compliance
21 with all requirements established by the board. A professional certificate shall
22 be issued upon the teacher candidate's successful completion of the program
23 and all academic content assessments in the specific teaching field of the
24 applicant as designated by the Education Professional Standards Board, and
25 upon the recommendation of the employing school district. *The academic*
26 *content assessment required in this paragraph may be substituted with an*
27 *academic major or minor of a bachelor's degree or an academic content*

area of a graduate degree in the area in which certification is sought.

~~(f)(8)~~ **Institute**~~[Option 7: certification of a person in a field other than education to teach in elementary, middle, or secondary programs]. This~~
route~~[option]~~ shall not be limited to teaching in shortage areas. An individual certified under provisions of this **paragraph**~~[subsection]~~ shall be issued a one (1) year provisional certificate, renewable for a maximum of four (4) additional years with approval of the Education Professional Standards Board.

1.(a) The candidate shall possess:

a.[1.]A bachelor's degree **or graduate degree**~~[with a declared academic major in the area in which certification is sought or a graduate degree in a field related to the area in which certification is sought];[and]~~

b.[2.]A minimum cumulative grade point average of two and seventy-five hundredths (2.75) on a four (4) point scale or a minimum grade point average of three (3) on a four (4) point scale on the last thirty (30) hours of credit completed, including undergraduate and graduate coursework from a nationally or regionally accredited postsecondary institution; **and**

c. At least one (1) of the following in the area in which certification is sought:

i. An academic major or minor of a bachelor's degree;

ii. An academic content area of a graduate degree; or

iii. A passing score on the academic content assessment.

2.(b) Upon meeting the requirements of **subparagraph 1. of this paragraph**~~[paragraph (a) of this subsection]~~ and enrolling in an approved institute, the Education Professional Standards Board shall issue the candidate a one (1) year provisional certificate or during the

1 first year of the certificate, the teacher shall complete the following:

2 a.~~[1.]~~ For elementary teaching, the individual shall successfully
3 complete a two hundred forty (240) hour institute that is an
4 equivalent of six (6) hour days for eight (8) weeks. The providers
5 and the content of the institute shall be approved by the Education
6 Professional Standards Board. The content shall include research-
7 based teaching strategies in reading and math, research on child
8 and adolescent growth, knowledge of individual differences,
9 including teaching exceptional children, and methods of classroom
10 management.

11 b.~~[2.]~~ For middle and secondary teaching, the individual shall
12 successfully complete a one hundred eighty (180) hour institute
13 that is an equivalent of six (6) hour days for six (6) weeks. The
14 providers and the content of the institute shall be approved by the
15 Education Professional Standards Board and shall include
16 research-based teaching strategies, research on child and
17 adolescent growth, knowledge of individual differences, including
18 teaching exceptional children, and methods of classroom
19 management.

20 3.~~[(c)]~~ The candidate shall receive a professional certificate and shall be
21 subject to certificate renewal requirements the same as other teachers
22 with a professional certificate:

23 a.~~[1.]~~ After meeting the requirements of this route~~[option]~~;

24 b.~~[2.]~~ ~~[After obtaining a passing score on the academic content~~
25 ~~assessment in the area in which certification is being sought;~~

26 ~~3.—~~ After successfully completing one (1) year of teaching; and

27 c.~~[4.]~~ Upon the recommendation of the employing school district to the

Education Professional Standards Board.

~~(g)(9)~~ ~~[Option 8: certification of a]~~Teach for America~~[participant to teach in elementary, middle, or high schools]~~. Nothing in this **paragraph**~~[subsection]~~ shall conflict with the participation criteria of the Teach for America program. An individual certified under this **paragraph**~~[subsection]~~ shall be issued a one (1) year provisional certificate.

~~1.(a)~~ The candidate shall possess:

~~a.[1.]~~ A bachelor's degree **or graduate degree;**

~~b.[2.]~~ A successful completion of the summer training institute and ongoing professional development required by Teach for America, including instruction in goal-oriented, standards-based instruction, diagnosing and assessing students, lesson planning and instructional delivery, classroom management, maximizing learning for diverse students, and teaching methodologies; and

~~c.[3.]~~ **At least one (1) of the following in the area in which certification is sought:**

i. An academic major or minor of a bachelor's degree;

ii. An academic content area of a graduate degree; or

iii. A passing score on the academic content assessment~~[in the area in which certification is being sought as designated by the Education Professional Standards Board]~~.

~~2.(b)~~ The provisional certificate granted under this **paragraph**~~[subsection]~~ may be renewed two (2) times with a recommendation of the superintendent and approval of the Education Professional Standards Board.

~~3.(c)~~ A Teach for America participant shall be issued a professional certificate upon the participant's successful completion of one (1) year

1 of teaching ~~and the assessments relating to teaching of subject matter~~
2 ~~required by the Education Professional Standards Board under KRS~~
3 ~~161.030,~~ and upon the recommendation of the employing school
4 district to the Education Professional Standards Board~~.~~

5 ~~(d) Notwithstanding any statute or administrative regulation to the contrary,~~
6 ~~a teacher certified under this subsection shall have ten (10) years to~~
7 ~~complete a master's degree or fifth year program, or the equivalent as~~
8 ~~specified by the Education Professional Standards Board in~~
9 ~~administrative regulation].~~

10 ~~(h)(10)~~ **Residency**~~[Option 9: expedited certification of a person to teach at any~~
11 ~~grade level through a cooperative program].~~ With approval of the Education
12 Professional Standards Board, a college or university may partner with a
13 school district to develop an expedited certification program that results in a
14 bachelor's degree and initial certification within three (3) school years.

15 ~~1.(a)~~ The program shall:

16 ~~a.[1.]~~ Include a residency or paraprofessional component which employs
17 the person within the participating district for the duration of the
18 program to gain work experience to supplement the expedited
19 program and reduced coursework;

20 ~~b.[2.]~~ Utilize experienced teachers employed by the district to provide
21 coaching and to mentor the candidates; and

22 ~~c.[3.]~~ Be designed to meet the needs of the participating district and may
23 include an emphasis in developing a teacher pipeline for the
24 district's students, improving the numbers of underrepresented
25 populations among the district's workforce, or focusing on
26 increasing the number of teachers with certification areas that are
27 in high demand.

1 ~~2.[(b)]~~ A school district entering into a cooperative partnership shall
2 ensure the availability of funding for each candidate employed within
3 the district in the residency or paraprofessional program for the duration
4 of the candidate's participation in the program. However, nothing in this
5 paragraph~~[subsection]~~ shall be interpreted as requiring the district to
6 continue employing the candidate during the program or after the
7 candidate has received initial certification.

8 ~~3.[(c)]~~ A person who has begun a traditional path or another route~~[option]~~
9 for certification shall be eligible to transfer into this route~~[option]~~ if the
10 person meets the program's requirements.

11 ~~4.[(d)]~~ If a school district participating in a cooperative partnership
12 determines to end the partnership, the district shall no longer accept new
13 candidates to the program but shall continue the partnership until the
14 district's employed candidates under this paragraph~~[for Option 9~~
15 certification] complete the program or are no longer employed by the
16 district.

17 ~~(3) [(11)]~~ In addition to the alternative routes to certification established under
18 subsection (2) of this section, there shall be a route to expand certification for a
19 person who currently holds a professional certificate that was earned through
20 completion of an approved college or university-based preparation program and
21 has at least two (2) years of teaching experience as defined in KRS 157.320.
22 However, a person who holds a professional certificate issued under subsection
23 (2)(a), (b), (d), or (g) of this section shall only be eligible to expand certification
24 under this subsection after the first renewal of the professional certificate. A
25 person who already holds a professional certificate may expand certification:
26 (a) To an additional area of certification in the same grade band by possessing
27 at least one (1) of the following in the area in which certification is sought:

- 1 1. An academic major or minor of a bachelor's degree;
- 2 2. An academic content area of a graduate degree; or
- 3 3. A passing score on the academic content assessment; and
- 4 (b) To an additional grade band in the same content area by possessing:
- 5 1. At least one (1) of the following to demonstrate content knowledge for
- 6 the area in which certification is sought:
- 7 a. A certificate for a higher grade band;
- 8 b. An academic major or minor of a bachelor's degree;
- 9 c. An academic content area of a graduate degree; or
- 10 d. A passing score on the academic content assessment; and
- 11 2. At least one (1) of the following to demonstrate instructional skills:
- 12 a. A certificate that includes the grade band being sought; or
- 13 b. A passing score in any professional skill assessment for the
- 14 grade band being sought.
- 15 (4) A public school teacher certified under subsection (2)~~[subsections (2) to (10)]~~ of
- 16 this section shall be placed on the local district salary schedule for the rank
- 17 corresponding to the degree held by the teacher.
- 18 (5)~~[(12)]~~ Subsections (1) to (3) of this section notwithstanding, a candidate who
- 19 possesses the following qualifications may receive certification for teaching
- 20 programs for exceptional students:
- 21 (a) An out-of-state license to teach exceptional students; and
- 22 (b) A bachelor's or master's degree in the certification area or closely related area
- 23 for which certification is sought.
- 24 (6) The Education Professional Standards Board shall develop and maintain a list of
- 25 academic majors, academic minors, and graduate degree academic content areas
- 26 and the corresponding areas for which they shall satisfy certification
- 27 requirements. The list shall be published on the board's website.

1 (7) A person shall not be disqualified from seeking additional certifications through
2 any alternative route established under subsection (2) of this section on the basis
3 of the person already holding a professional certificate.

4 (8) For the first renewal of a professional certificate issued under subsection (2)(a),
5 (b), (d), or (q) of this section, the Education Professional Standards Board shall
6 require the certificate holder to submit evidence indicating the completion of
7 trainings established or approved by the Kentucky Department of Education that
8 train the certificate holder on items specifically mandated by statute on
9 postsecondary institutions offering teacher preparation programs for the
10 certificate's area. The Education Professional Standards Board shall compile a
11 list of the specific statutory mandates and publish the list on the board's website.

12 (9) This section shall not negate the Education Professional Standards Board's
13 authority to require a passing score on a professional skills assessment as a
14 condition for receiving a professional certificate upon completion of an
15 alternative route under subsection (2) of this section.

16 (10) Any academic content assessment for a certification area required under this
17 section shall be the same assessment otherwise required by the Education
18 Professional Standards Board for initial certification in that area.

19 ➔Section 2. KRS 161.032 is amended to read as follows:

20 (1) (a) There is hereby created a certification incentive fund in the State Treasury to
21 be administered by the Education Professional Standards Board. The fund
22 shall provide grants to eligible recipients for conducting institutes as described
23 in KRS 161.048~~(2)(f)~~~~(8)~~, including the costs of salaries of institute
24 instructors, consultants, materials, stipends and loans to participants, other
25 costs associated with the institutes, and costs of assistance to teachers
26 throughout their first year of teaching.

27 (b) Eligible recipients of grant funds may be nonprofit organizations, institutions,

1 and agencies, including but not limited to postsecondary education
2 institutions, school districts, education cooperatives, and consortia of school
3 districts.

4 (c) The Education Professional Standards Board shall promulgate administrative
5 regulations establishing standards and procedures for the grant program,
6 including minimal participation levels and maximum grant awards.

7 (2) (a) The Education Professional Standards Board shall determine priority for
8 specific institutes.

9 (b) The board shall request proposals and approve at least one (1) summer
10 institute for the purpose described in paragraph (a) of this subsection each
11 academic year. The institute shall be a minimum of ninety (90) clock hours,
12 based on six (6) hour days for a three (3) week period.

13 (c) Each individual who completes a summer institute shall have additional hours
14 of formal instruction or assistance during the first year of teaching to reach the
15 minimum number of clock hours as required in KRS 161.048(2)(f)2.~~[(8)(b)]~~.

16 (d) The candidate shall be assigned a teacher mentor by the grant recipient the
17 first year of teaching. Payment of the teacher mentor shall be from the grant
18 provided under subsection (1) of this section.

19 (3) (a) Individuals who are accepted into an institute shall be provided a forgivable
20 loan incentive at the beginning of the institute to encourage their participation.
21 The amount of the forgivable loan shall be determined by the Education
22 Professional Standards Board. The loan shall be forgiven if the participant
23 teaches in a Kentucky public or Kentucky Board of Education certified
24 nonpublic school for one (1) year within the three (3) years following the
25 awarding of the loan.

26 (b) If an individual does not successfully complete the institute or teach in a
27 qualifying Kentucky school, the loan must be repaid according to procedures

1 promulgated in administrative regulation by the Kentucky Higher Education
2 Assistance Authority.

3 (c) The Education Professional Standards Board shall enter into a memorandum
4 of understanding with the Kentucky Higher Education Assistance Authority to
5 administer the forgivable loan incentive under this section. Based on the
6 memorandum of understanding, the authority may retain a portion of the
7 funds for administering the forgivable loan incentive. Funds recovered under
8 provisions of this section, minus the administrative costs, shall be returned to
9 the State Treasury.

10 (4) Each individual who successfully completes a summer institute shall be awarded a
11 stipend equal to the amount of the forgivable loan as described in subsection (3) of
12 this section. The stipend shall be awarded at the end of the institute without
13 restrictions.

14 (5) Grant recipients and local school districts may offer financial incentives to potential
15 participants and individuals who complete an institute from fund sources other than
16 the grant funds.

17 ➔Section 3. KRS 164.757 is amended to read as follows:

18 (1) For purposes of this section unless the context requires otherwise:

19 (a) "Critical shortage area" means an area in which there are insufficient numbers
20 of fully certified staff in a particular subject, school, or geographic location;

21 (b) "Emergency certified teacher" means an individual who has not completed
22 certification requirements but has been awarded a temporary certificate for a
23 certification area in which no fully qualified teacher was available;

24 (c) "Qualified teacher" means a teacher who holds the appropriate certification
25 for a position unless the superintendent of the employing local school district
26 has documented evidence that the teacher is unsuitable for appointment;

27 (d) "Qualified teaching service" means teaching for at least seventy (70) days

1 each semester or the equivalent in the certification area for which an
2 individual received a forgivable loan in the Kentucky school district that
3 recommended the individual for a loan or in another Kentucky private or
4 public school district in the certification area for which an individual received
5 a forgivable loan if no position was available in the recommending school
6 district at the time when the individual completed his or her certification;

7 (e) "Semester" means a period which usually makes up one-half (1/2) of a school
8 year or one-half (1/2) of a postsecondary institution's academic year; and

9 (f) "Summer term" means an academic period consisting of one (1) or more
10 sessions of instruction between a spring and a fall semester at a postsecondary
11 education institution.

12 (2) To increase the number of qualified teachers in local school districts and to reduce
13 the number of emergency certified teachers, there is hereby created the district
14 teacher certification loan fund in the State Treasury. The loans shall be used to
15 provide forgivable loans to emergency certified personnel, fully certified teachers
16 who are willing to seek additional certification in hard-to-fill or critical shortage
17 areas, and paraprofessionals in local school districts to become fully certified
18 teachers and to continue service within the local district.

19 (3) The fund shall be administered by the Kentucky Higher Education Assistance
20 Authority. The authority shall promulgate administrative regulations to specify the
21 terms and conditions of the award, cancellation, and repayment of loans, including
22 but not limited to the maximum amount that may be loaned per term and the
23 maximum aggregate amount per applicant, the selection process, eligibility for
24 renewal, the specific administrative procedures for utilizing the funds, and the rate
25 of repayment.

26 (4) To qualify for a forgivable loan, an applicant shall meet the following requirements:
27 (a) Be employed by a specific local district as a certified teacher, an emergency

- 1 full-time or part-time teacher, an emergency substitute teacher, or a
2 paraprofessional at the time he or she makes application for the loan;
- 3 (b) Be recommended by the superintendent as an individual that he or she would
4 recommend to be employed in a teaching position for which the applicant is
5 pursuing certification if the applicant fulfills all credentialing requirements;
- 6 (c) Be endorsed by the school-based decision making council of the school in
7 which he or she serves to receive a loan for the purposes of obtaining teacher
8 certification in a specific certification area; except that the endorsement shall
9 not be construed as a commitment of securing a position in the particular
10 school in the future;
- 11 (d) Be admitted and enrolled as an undergraduate or graduate student in a
12 Kentucky private or public postsecondary institution that offers a teacher
13 certification program in the area for which he or she is seeking certification;
14 and
- 15 (e) Be enrolled in a minimum of six (6) credit hours and not more than nine (9)
16 credit hours during each semester of an academic term while employed
17 concurrently in the school district and in not less than six (6) credit hours
18 during the summer term. If a school district recommends an applicant for a
19 loan under provisions of this section and grants a leave of absence to the
20 employee to pursue certification, the employee shall be enrolled as a full-time
21 undergraduate or graduate student as defined by the institution in which he or
22 she is enrolled.
- 23 (5) ~~[A participant in a local district alternative certification program as defined in KRS~~
24 ~~161.048(2) may be eligible for a loan under provisions of this section to offset costs~~
25 ~~associated with the program. The authority shall establish by administrative~~
26 ~~regulation the specific requirements, notwithstanding requirements in subsection (4)~~
27 ~~of this section.~~

1 ~~(6)~~—A loan shall not be awarded or a promissory note cancellation shall not be granted
2 to any person who is in default on any obligation to the authority under any
3 program administered pursuant to KRS 164.740 to 164.785 until financial
4 obligations to the authority are satisfied, except that ineligibility for this reason may
5 be waived by the authority for cause.

6 ~~(6)~~~~(7)~~ Recipients shall render one (1) semester of qualified teaching service for each
7 semester or summer term for which a loan was received. Upon completion of each
8 semester of qualified teacher service, the authority shall cancel the appropriate
9 portion of the promissory notes.

10 ~~(7)~~~~(8)~~ If the recipient of a loan fails to complete the certification at a participating
11 institution or fails to render qualified teaching service in any semester following
12 certification, unless the failure is temporarily waived for cause by the authority, the
13 recipient shall immediately become liable to the authority for repayment of the sum
14 of all outstanding promissory notes and accrued interest. Persons liable for
15 repayment of loans under this subsection shall be liable for interest accruing from
16 the dates on which the loans were disbursed.

17 ~~(8)~~~~(9)~~ Failure to meet repayment obligations imposed by this section shall be cause
18 for the revocation of a person's certification, subject to the procedures set forth in
19 KRS 161.120.

20 ~~(9)~~~~(10)~~ All moneys repaid to the authority under this section shall be added to the
21 fund in this section. Any fund balance at the close of a fiscal year shall not lapse but
22 shall be carried forward to the next fiscal year and continuously appropriated for the
23 purposes specified in this section.

24 ~~(10)~~~~(11)~~ The authority may execute appropriate contracts and promissory notes for
25 administering this section.

26 ~~(11)~~~~(12)~~ If available funds are insufficient for all requested loans for eligible applicants
27 during any fiscal year, the authority shall give priority consideration to eligible

1 applicants who previously received loans. If funds are insufficient to make all
2 requested renewal loans to eligible applicants, the authority shall reduce all loans to
3 the extent necessary to provide loans to all qualified renewal applicants. If, after
4 awarding all eligible renewal applicants, funds are not depleted, priority shall be
5 given to loans for those applicants who are seeking certification in critical shortage
6 areas.

7 ➔Section 4. The following KRS section is repealed:

8 161.049 Professional support teams -- Training program -- Alternate training
9 program.